

(iii) Objections not adequately substantiated

In T 2253/16 the only argument the appellant (opponent) had put forward in its grounds of appeal in support of its assertion that the subject-matter of claim 1 lacked novelty over D4 was that the contested decision contradicted itself on one of the features. The board observed that there was **no analysis of D4** showing where the appellant considered what claim features to be disclosed. Art. 12(3) RPBA 2020 required that the grounds of appeal contain the appellant's complete case. The board could not simply refer to the submissions made in the opposition proceedings, it being clear from Art. 12(3) RPBA 2020 that they were not automatically part of the appeal case. An **unspecific** reference to the notice of opposition made no difference; Art. 12(3) RPBA 2020 required that all facts and objections be specified expressly.

The board in T 2796/17 similarly held that, under Art. 12(3) RPBA 2020, the appellant had to set out clearly the reasons for requesting that the decision under appeal be reversed and **specify expressly all** facts, objections and evidence relied on. Attacking the decision only generally or referring generally to the case made in the opposition proceedings was not enough for this.

For further cases relating to insufficient substantiation of an objection, see e.g. T 2227/15 (with regard to Art. 12(2) RPBA 2007, which, as the board noted, corresponds to Art. 12(3) RPBA 2020), T 565/16 (novelty objection based on D3, mere reference to submissions in opposition proceedings). See also chapter V.A.4.2.2b) "Submissions at first instance not automatically part of appeal case".

(iv) Case not fully prepared

In J 3/20 the appellant invoked the principle of protection of legitimate expectations for the first time during oral proceedings before the Legal Board of Appeal and alleged that it had trusted the content of a communication in a parallel case, which, however, it had already received in 2016. The Legal Board of Appeal highlighted that the condition in Art. 12(3), first sentence, RPBA 2020 required a complete preparation **considering all the relevant documents that were available**. Thus, in its view, no reasons were apparent that could justify why the appellant had presented the new defence and the underlying facts for the first time at such a late stage of the proceedings, thereby counteracting principles of procedural economy. The Legal Board used its discretion under Art. 12(4) and (6) and 13(1) RPBA 2020 not to admit the new submissions.

c) Discretion under Art. 12(5) RPBA 2020

In T 2457/16 the patent proprietor had left the board and the opponent in the dark about the order in which its auxiliary requests were to be examined, precisely what amendments had been made in them and what purpose they served. The board held this to be contrary to the requirement under Art. 12(3) RPBA 2020 as the patent proprietor had thereby shifted to the opponent and the board the responsibility – properly incumbent on it – to select from the numerous requests one that might ultimately be allowable (see also

R.11/08). The board therefore decided not to admit the auxiliary requests in question (Art. 12(4) and (2) RPBA 2007 and Art. 12(3) and (5) RPBA 2020).

In ex parte case **T.1421/20** requests were introduced and commented on in the statement of grounds of appeal, but no claims were filed, and so the board had discretion not to admit them under Art. 12(5) RPBA 2020. The board took into account that the requests contained a feature which had previously been found to be unclear. Since none of the requests at issue met the requirement of clarity, the board exercised its discretion not to admit these requests.

4.3.6 Submissions not admitted at first instance – Article 12(6), first sentence, RPBA 2020

In **T.1421/20** auxiliary requests 6 to 12 were filed in preparation for the oral proceedings before the examining division, which, exercising its discretion under R. 137(3) EPC, decided not to admit them into the proceedings as late filed and prima facie unclear. Since the appellant **did not provide any arguments** with respect to these requests on appeal, the board saw no reason to question the decision of the examining division and decided not to admit these requests into the appeal proceedings (Art. 12(6) RPBA 2020).

In **T.847/20** auxiliary requests 3 and 4, filed with the statement of grounds of appeal, corresponded to auxiliary requests filed during the oral proceedings before the opposition division. Those requests had not been admitted into the opposition proceedings in view of their late filing and the fact that they did not comply with Art. 123(2) EPC. However, the board noted that the opposition division had not carried out a prima facie assessment but had fully considered the requests before concluding that they could not be admitted. The board considered that, by doing so, the opposition division had implicitly admitted the requests. Consequently, the board took the view that the opposition division had wrongly exercised its discretion because, having **implicitly admitted the requests**, there was no discretion left not to admit them (**T.2026/15, T.2324/14**).

4.3.7 Submissions that should have been submitted at first instance – Article 12(6), second sentence, RPBA 2020

In **J.12/18** the Legal Board applied the criteria of Art. 12(6) RPBA 2020 at the second level of the convergent approach. The appellant (applicant) presented for the first time submissions concerning the protection of its legitimate expectations during the oral proceedings. The Legal Board exercised its discretion under Art. 12(4) and (6) and 13(1) RPBA 2020 not to admit the new submissions; the appellant could and should have presented the facts that formed the basis for the alleged protection of legitimate expectations earlier in the proceedings. The appellant argued that it had relied on an EPO communication of 10 August 2016 issued in the parallel case **J.14/18**. However, the Legal Board observed that if the appellant had really trusted the content of this communication, it would have been aware of this fact from the moment of taking note of that information. The Legal Board also considered that the new objection would require the assessment of several issues (causal link between the erroneous information in another case and the reaction of the appellant, requirement of proof thereof, reasonableness of the appellant's reaction) and that this would be detrimental to procedural economy. Moreover, the

objection would introduce a completely new aspect on which the assessment and the reasoning in the appealed decision were not focused. The Legal Board further underlined that a party had to present the complete case already with the statement of grounds of appeal (Art. 12(3) RPBA 2020), which required a complete preparation considering all the relevant documents that were available. See also the parallel case J 3/20.

In T 1188/16 the board, applying Art. 13(1) RPBA 2020 and Art. 12(6) RPBA 2020, came to the conclusion that the request of the appellant (proprietor) should have been filed in the first-instance proceedings. At the latest during the oral proceedings before the opposition division, the appellant, which had already been aware of a general objection regarding an intermediate generalisation, had received an unambiguous indication which features were missing from the claim and thus been in a position then to file requests including the omitted features.

In T 81/20 new objections under Art. 100(c) EPC were raised in the statement of grounds of appeal. The board considered that the appellant (opponent) could and should have submitted these objections already in the first-instance proceedings. The board noted that appellant had not set out any circumstances which would justify the admittance of the new objections (and the board could not see any). In view of these considerations, the need for procedural economy and the fact that these objections appeared prima facie not to prejudice maintenance of the patent, the board, exercising its discretion under Art. 12(2), (4) and (6) RPBA 2020, did not admit them into the proceedings.

In T 1456/20 the board similarly concluded that auxiliary request 7 (which corresponded to one of the auxiliary requests filed with the reply) should already have been submitted in the opposition proceedings. The novelty objection it was designed to overcome had already been addressed at the oral proceedings before the opposition division but the patent proprietor had decided at the time to limit the claimed subject-matter in a certain way and thereby deliberately foregone an examination of subject-matter now reintroduced in auxiliary request 7. The board held that reintroducing this subject-matter was at odds with the purpose of appeal proceedings referred to in Art. 12(2) RPBA 2020. It could see no circumstances that might justify a different conclusion.

In T 847/20 the board held that the auxiliary requests at issue, filed for the first time with the statement of grounds of appeal, should have been filed in the proceedings before the opposition division. The board could not find any circumstances which justified their admittance. The board noted that the objection which the appellant (patent proprietor) intended to address had already been raised in the notice of opposition. Although the opinion of the opposition division had changed in the course of the proceedings, the appellant had had several opportunities to address this objection by filing new requests and had filed several requests during oral proceedings to this end. The board could not see any valid reason that would justify the filing of further requests to address this very same issue at the appeal stage. The general explanation that the appellant sought to address the reasoning of the opposition division in its written decision was not considered to be specific enough to justify the admittance of the requests at the appeal stage.

4.4. Second level of the convergent approach – submissions made after filing of grounds of appeal or reply – Article 13(1) RPBA 2020

4.4.1 Principles

New Art. 13(1) RPBA 2020 implements the second level of the convergent approach applicable in appeal proceedings. It defines the conditions under which a party may amend its appeal case after the initial stage of the proceedings. The party must provide reasons as to why the amendment is submitted at this stage of the appeal proceedings (underlined e.g. in T 136/16). The admittance of the amendment is subject to the board's discretion (see CA/3/19, section VI, explanatory remarks on Art. 13(1) RPBA 2020, supplementary publication 2, OJ 2020). As confirmed by the board in T 1217/17 and T 2101/16, the list of criteria for applying that discretion given in Art. 13(1) RPBA 2020 is non-exhaustive. Moreover, Art. 13(1), second sentence, RPBA 2020 stipulates the application mutatis mutandis of Art. 12(4) to (6) RPBA 2020, which includes the criteria in Art. 12(4), fifth sentence, RPBA 2020 (inter alia, complexity of the amendment, see e.g. T 32/16, T 310/18).

The boards have repeatedly highlighted that the criteria set out in Art. 13(1) RPBA 2020 reflect established case law developed through the stringent application of the requirements of Art. 13(1) RPBA 2007 (see e.g. T 634/16, T 32/16, T 1480/16, T 1597/16, T 658/17; for details see chapter V.A.4.5.2b) "No contradiction between Article 13(1) RPBA 2020 and Article 13 RPBA 2007 or the EPC").

As mentioned in chapter V.A.4.1.2 "Primary object of appeal proceedings and the 'convergence approach' to amendments to party's case" above, the requirements of the second level of the convergent approach (Art. 13(1) RPBA 2020) also play a role at the **third level**. As envisaged in the explanatory remarks on Art. 13(2) RPBA 2020 and confirmed by case law, the boards may in the exercise of their discretion under Art. 13(2) RPBA 2020 also rely on **criteria** applicable at the second level of the convergent approach. It is noted that decisions applying the criteria of Art. 13(1) RPBA 2020 are therefore presented not only in this chapter but also in chapters V.A.4.5.9, V.A.4.5.10 and V.A.4.5.11 below.

Decisions referring to **transitional cases**, i.e. cases which concern the last stage of the appeal proceedings, but in which Art. 13(2) RPBA 2020 does not apply yet and instead Art. 13 RPBA 2007 and Art. 13(1) RPBA 2020 apply simultaneously (Art. 25(1) and (3) RPBA 2020, see also chapter V.A.4.5.2 "Transitional provisions"), are presented in this chapter together with the other decisions applying Art. 13(1) RPBA 2020.

4.4.2 Transitional provisions – immediate applicability of Article 13(1) RPBA 2020

According to Art. 25(1) RPBA 2020, the RPBA 2020 apply, as a general rule, to any appeal pending on, or filed after, the date of entry into force. This principle of immediate application is subject to the two exceptions provided for in Art. 25(2) and (3) RPBA 2020. However, as pointed out in e.g. T 2227/15, these two exceptions concern only those provisions which specifically govern the initial stage and the ultimate stage of the appeal

proceedings, leaving the intermediate stage, i.e. the second level of the convergent approach (Art. 13(1) RPBA 2020), to be governed by the general rule set out in Art. 25(1) RPBA 2020.

In other words, the general applicability of the RPBA 2020 to any appeal pending on their date of entry into force includes Art. 13(1) RPBA 2020, irrespective of whether the summons to oral proceedings was notified before 1 January 2020 (T 1386/18 with reference to T 2227/15, T 32/16 and T 634/16). Likewise T 2112/16.

In T 1577/19 the board refused the request for referral of a question on whether the new procedural provisions applicable to proceedings before the boards since the beginning of 2020 could be applied retrospectively to older cases, finding that this question had already been answered in the affirmative by the RPBA 2020 themselves (Art. 24(1) RPBA 2020) and by the case law.

4.4.3 Amendment to appeal case within the meaning of Article 13(1) RPBA 2020

Under Art. 13(1) RPBA 2020, any amendment to a party's appeal case after it has filed its grounds of appeal or reply must be justified and may be admitted only at the board's discretion. On the definition of "amendment to a party's appeal case", see chapter V.A.4.2.2 "Second and third levels of the convergent approach: amendments to an appeal case within the meaning of Article 13(1) and (2) RPBA 2020".

4.4.4 Party's duty to justify amendment

a) Principles

As stated in CA/3/19 (section V.B.a), point 49), one of the most important elements of the "convergent approach" is that the onus is on a party to explain and justify any amendment to its case. That includes providing reasons for not submitting the amendment at an earlier stage in the appeal proceedings (Art. 13(1), third sentence, RPBA 2020; see chapter V.A.4.4.4b) below). In the case of an amendment to a patent application or patent, the party must indicate the basis for it in the application as filed (Art. 13(1), second sentence, in conjunction with Art. 12(4), fourth sentence, RPBA 2020) and demonstrate that, prima facie, it overcomes the issues raised by either another party in the appeal proceedings or by the board and does not give rise to new objections (Art. 13(1), fourth sentence, RPBA 2020).

b) Party's duty to provide reasons for not submitting amendment at an earlier stage

In T 2688/16 the board observed that it was a **fundamental requirement** under Art. 13(1) RPBA 2020 for consideration – at the board's discretion – of an amended appeal case that reasons be given for not making the amendment at an earlier stage in the proceedings. In the case in hand, a second experimental report filed with the patent proprietor's reply revealed a synergetic effect that was decisive for inventive step. The opponents contested the effect, but the board refused to admit the supporting evidence (in particular **experimental reports**), which they had not filed until about one month before